



FERPA / Privacy Compliance — Research Digest

Dark visual edition · 2026-09-24

Card t_e6da0815 · FERPA · Research digest (no app implementation)

Chuck Broaddus / Kelyra · Confidential

Source: dated research digests under notes/company · graphics illustrate locked recommendations.

Executive recommendation

Locked recommendation

Close P0 privacy gaps for trial: Privacy Policy + ToS on kelyra.app, Pilot MOU with Spring Baptist, COPPA path, AI disclosure, Ride/LPR notice, access/deletion intake, subprocessor inventory — and keep the explicit non-claim of “FERPA compliant / school official” until counsel-approved DPA. Not legal advice.

Decision cards

P0-1 Privacy + ToS	P0-2 Pilot MOU
Posture Non-claim	Advice Not legal advice

FERPA / privacy — Top P0 gaps (not legal advice)



Figure: Top P0 privacy gaps.

FERPA — Compliance Research Digest

Date: 2026-09-24 Author: Chief of Staff / Grok Bot (Kelyra) Status: Ready for Chuck review SoT pair: [notes/company/ferpa-research.md](#) · [notes/company/ferpa-compliance-plan.md](#) Card: [t_e6da0815](#) Access date for all URLs: 2026-09-24 (America/Chicago)

This dated file is a readable pack for Chuck. Full detail lives in the SoT pair above.

Legal posture: Not legal advice. Not a claim that Kelyra is FERPA-certified or a FERPA school official.

Top P0 gaps

- 1. P0-1 — Publish Privacy Policy + Terms of Service on [kelyra.app](#) (blocks honest trial / store / DNS unpark).
- 2. P0-2 — Sign Pilot MOU with Spring Baptist (purpose limits, subprocessors, retention, deletion, no false FERPA claims). Teacher click-through ≠ school DPA.
- 3. P0-3 — Document COPPA / under-13 path (school-as-agent vs parental consent) for student sessions.
- 4. P0-4 — Customer-facing AI disclosure (paid Gemini/xAI process homework images/audio; no free-tier training endpoints).
- 5. P0-5 — Ride/LPR parent notice + retention (plates/stills linked to children).
- 6. P0-6 — Keep non-claim: do not market “FERPA compliant / school official” until counsel-approved DPA + matching ops.
- 7. P0-7 — Access/deletion intake + breach notify runbook (even if manual for trial).
- 8. P0-8 — Subprocessor inventory (Supabase, Gemini, Cloudflare, Resend, Sentry, EAS) with DPAs/terms acknowledged.

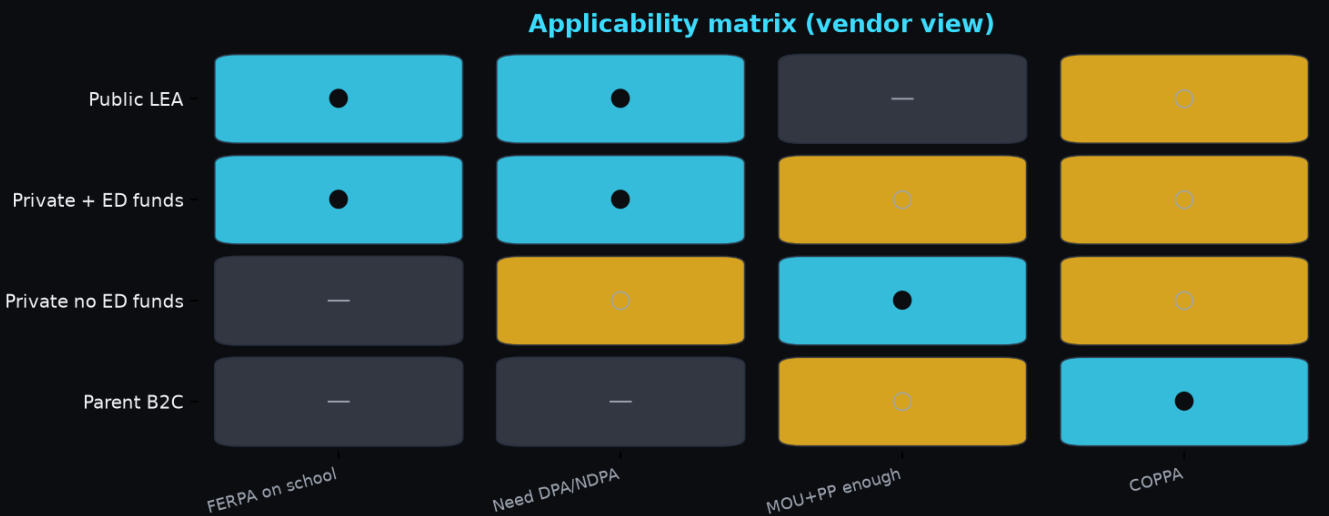


Figure: FERPA applicability matrix (vendor view).

Research (synopsis)

FERPA in one page

FERPA (20 U.S.C. § 1232g; 34 CFR Part 99) applies to schools/agencies that receive applicable U.S. Department of Education program funds. It protects education records and restricts disclosure of PII without consent, with exceptions — especially school official / legitimate educational interest for contractors under the school’s direct control who use data only for the authorized educational purpose and do not redisclose. (studentprivacy.ed.gov/ferpa; eCFR Part 99 Subpart D; Vendor FAQ).

Private schools: Usually not FERPA-bound solely because students receive equitable services; they are bound only if the school itself receives qualifying funds. (§ 99.1(b); ED equitable-services FERPA Q&A). Still contract for confidentiality.

Applicability matrix (vendor view)

School	FERPA on school?	Kelyra implication
Public LEA	Usually yes	NDPA/DPA + school-official terms before claim
Private + ED funds to school	Yes (verify)	Same
Private, no ED funds to school (common)	Usually no	MOU + Privacy Policy; no school-official claim
Parent B2C	N/A	COPPA / state minor privacy

What Kelyra already has (soft FERPA)

From docs/architecture.md / research/06 / AVG-S1:

- Keys server-side; private buckets; Approve gate; paid AI no-training intent; prompt minimization; RLS hat walls; explicit non-claim of school-official without DPA.

Necessary. Not sufficient for district sales or compliance marketing.

Related regs

Soft FERPA already in product — necessary, not sufficient



Figure: Soft FERPA already in product.

Regime	Why it matters
COPPA	Under-13 collection; school may consent as agent only for educational use, no other commercial purpose (FTC FA...
PPRA	Surveys on protected topics — secondary unless Ask/diary becomes survey-like (PPRA hub)
TEC Ch. 32	TX operator / covered information rules — acute for public LEAs (TEC 32)
SB 820 / § 11.175	District cybersecurity coordinator/breach — private schools generally out; still adopt hygiene (SB 820)
SCOPE Act HB 18	Social digital services + public-school software standards — counsel on messaging/diary (TX OAG)

Regime	Why it matters
SDPC NDPA / TX-DPA	Procurement standard; v2.2 Nov 2025 (A4L; TxSPA)
HIPAA	Usually out for grades/Ride unless PHI

Plan (roadmap)

Phase A — Trial

Privacy Policy + ToS → Pilot MOU → paid AI + Pro Supabase → Ride notice/retention → subprocessor list → incident/deletion intake → honest marketing.

Phase B — Paid

Short DPA or NDPA → insurance → tested export/delete → questionnaire pack → retention jobs.

Phase C — Multi-school / TX public

TX-NDPA workflow → state matrix → harder student auth → pen test/SOC2 decision.

Counsel questions (top)

- 1. Is Spring Baptist FERPA-bound (ED funds to the school)?
- 2. Contracting party: school vs teacher?



Figure: Phase A / B / C compliance roadmap.

- 3. MOU-only vs short DPA for trial?
- 4. Ride retention window?
- 5. Under-13: school agent vs parent-first?
- 6. Messaging/diary = school records or personal?

Recommended Chuck actions (this week)

- 1. Answer counsel Q1–Q6 (even tentatively).
- 2. Authorize legal-compliance to draft Privacy Policy + Pilot MOU skeletons (outside counsel if needed).
- 3. Do not unpark DNS / claim FERPA school-official until Policy + MOU exist.
- 4. Keep Eng dark on “FERPA certification” work — privacy product walls continue per epic security reviews (AVG-S1 pattern).

Files written

Path	Role
notes/company/ferpa-research.md	Full research SoT
notes/company/ferpa-compliance-plan.md	Gaps, roadmap, related-regs actions
notes/research/2026-09-24-ferpa-compliance-report.md	This digest

Method: Read-only review of architecture + prior FERPA research + AVG security note + GTM \$7; primary sources accessed 2026-09-24. No app code. No Hermes AI staffing. No SQL / qa-loop.

Meta · Card t_e6da0815 (FERPA) · Dark visual edition 2026-09-24 · Not legal advice where privacy/compliance topics appear · No Hermes staffing.